

Mohammad Aslam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 November 2022 · WRIT - C No. - 30401 of 2022 · **Writ disposed; petitioner relegated to clause 6.5; recovery stayed two months.**

HEADNOTE

A dispute confined to computation of electricity charges is to be raised by objection before the concerned Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005, and is not entertained on writ. The petition was disposed with a two-week window to file that objection, a direction that the Executive Engineer decide all points expeditiously (preferably within four weeks of receipt), and a stay of the recovery certificate dated 27.10.2021 for two months or until that decision, whichever is earlier. Default in filing the objection leaves the licensee free to proceed in accordance with law.

FACTUAL SUMMARY

Mohammad Aslam invoked the writ jurisdiction of the Allahabad High Court against the State and electricity authorities, disputing the computation of charges on his electricity connection and the recovery certificate dated 27 October 2021. Counsel for the electricity department pointed out that respondent no. 5 was incorrectly described in the array of parties; the petitioner was permitted to correct the array during the day. No question of law was presented. The controversy, as the Court recorded it, was a billing-computation dispute on an existing connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing computation dispute — clause 6.5 objection

HOLDING

A dispute as to computation of electricity charges on a consumer's connection is to be raised by objection before the concerned Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005. The writ was disposed directing the petitioner to file that objection within two weeks; the Executive Engineer to decide all points of objection expeditiously, preferably within four weeks of receipt; the recovery certificate dated 27.10.2021 kept in abeyance for two months or until that decision, whichever is earlier; and, on default in filing the objection, the licensee left free to proceed in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ on computation of electricity charges disposed; petitioner directed to the Executive Engineer under paragraph 6.5 rather than merits relief in the High Court. ¶ 1

6.5-representation-as-appropriate-remedy Court identified paragraph 6.5 objection before the concerned Executive Engineer as the appropriate remedy for the billing-computation grievance. ¶ 1

billing-objection-to-executive-engineer-under-6.5 Petitioner directed to file an objection under paragraph 6.5 before respondent no. 5 (Executive Engineer) within two weeks; EE to decide all points preferably within four weeks. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Disputed computation of charges treated as a statutory 6.5 billing objection, with the 27.10.2021 recovery certificate held in abeyance only pending that process. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE COMPUTATION OF ELECTRICITY CHARGES AND OF THE RECOVERY CERTIFICATE DATED 27.10.2021

Merits of the billing dispute left to the Executive Engineer under clause 6.5. ¶ 1

